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\*\*\* START OF THE PROJECT GUTENBERG EBOOK RETAINED FOR  
THE DEFENCE: A FARCE, IN ONE ACT \*\*\*

# RETAINED FOR THE DEFENCE

*A Farce,*

IN ONE ACT.

BY

JOHN OXENFORD, ESQ.,

AUTHOR OF

*Twice Killed, A Day Well Spent, A Family Failing, Dice of Death, Only  
a Halfpenny, Reigning Favourite, Rape of the Lock, My Fellow Clerk,  
I and My Double, A Quiet Day, No Followers, What have I done?  
Porter's Knot,  
&c. &c.*

THOMAS HAILES LACY,

89, STRAND,

*(Opposite Southampton Street, Covent Garden Market),*

LONDON.

RETAINED FOR THE DEFENCE.

*First performed at the Royal Olympic Theatre,  
on Monday, May 23rd, 1859.*

***Characters.***

|                        |                |
|------------------------|----------------|
| MR. MOTTLEY DE WINDSOR | MR. G. COOKE.  |
| MR. WHITEWASH          | MR. G. VINING. |
| MR. FERGUSON           | MR. H. COOPER. |
| THWAITES               | MR. H. WIGAN.  |
| PAWKINS                | MR. F. ROBSON. |
| AGATHA DE WINDSOR      | MISS COTTRELL. |

*Guests, &c.*

*Time of Representation—45 MINUTES.*

*PERIOD—Present Day.*

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***Costumes.***

DE WINDSOR—Blue coat with metal buttons, white vest, black trousers.

WHITEWASH—Modern evening suit.

FERGUSON—Ditto.

THWAITES—Blue dress coat, white vest, black trousers, Berlin gloves.

PAWKINS—Long-tailed dress coat, colored vest, black trousers; hat and umbrella.

AGATHA—Rich pink silk ball dress.

GUESTS—Evening dresses.

## RETAINED FOR THE DEFENCE.

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SCENE—*A Drawing Room fitted up for an evening party—to the left a card table—doors, C. and L.*

THWAITES, *who has finished lighting candles in chandelier at back, C., steps back to survey the effect.*

THWAITES. Now, that's what I call the real thing—the clean grit. The position of that bokey (*bouquet*) is such, that none but the purest taste could conceive,—those camellias, chastity itself. A fine combination! Cutting the turnips and carrots to make ornaments for the cold tongue; chusing the bokies at Covent Garden Market; mildly tempering the brilliant light of wax and gas with the soothing hue of flowers. I have brought all my arts to bear upon this sworry. The party who is a greengrocer in the morning, is the only perfect waiter in the evening.

*Enter AGATHA, C.*

AGATHA. (L.) So, Thwaites, the room appears quite ready?

THWAITES. (R.) Yes, Miss Agatha; without exaggeration I may venture to say, we are lit up.

AGATHA. My father has not returned?

THWAITES. No, Miss Agatha, he has not—since he left the house at two in the afternoon—I haven't the slightest notion where he is gone.

AGATHA. Indeed! (*laughing—sits, L. C.*)

THWAITES. No—though I did my best to ascertain;—“Are you going far, sir?” says I. He stares, and he makes me no answer. “Shall you be long,



sir?" says I. He stares again, and again he makes no answer. "Because sir," says I, "there's the party this evening!" "I know that, better than you do," says he, "for I shall have to pay for it!"—just like him, Miss Agatha—ha, ha, ha!

AGATHA. (*aside—vexed*) Really, 'pa must have a regular footman; these tradespeople whom he engages as occasional waiters don't understand subordination a bit.

THWAITES. I hope you admire the bokies, Miss Agatha; them camellias are quite the thing, I flatter myself;—all my taste—ha! ha! You'll be called to-morrow the Lady of the Camellias!

AGATHA. Most offensive! (*rises, and turns aside*)

THWAITES. Now, I thought I had said something very pretty—but she don't look pleased.

AGATHA. No one has arrived, of course?

THWAITES. On the contrary, Miss Agatha—I'm sorry to differ from you, but I rather think one has arrived, and is coffee-ing in the back parlor;—here he is, too!

*Enter WHITEWASH, C. from L. C., and down, C.*

Mr. Whitewash, as I'm alive!—No occasion to announce you, sir.

WHITE (C.). Ah, my dear Miss De Windsor, excuse me if I stopped a minute to refresh myself with a *demitasse* of your choice Mocha instead of flying up stairs; but you see, a cause in which I was retained came on late, and I was obliged to exert myself a good deal—abnormally—if I may use the expression;—in short I was regularly knocked up.

AGATHA. Don't think of apologies—as it is you are the first in the room. So you have had another brief to-day—I hope you have been victorious.

WHITE. One of my most brilliant triumphs! I actually outshone myself! (THWAITES *listens*) A rascal had stolen a watch from a gentleman's pocket, and hid it!—ha, ha, ha!—in his umbrella.

THWAITES. Watch in an umbrella—come, that's not bad!—ho, ho, ho!

WHITE. Eh? (*looks half offended—then continues without noticing THWAITES*) There is not the slightest doubt that the scoundrel was guilty; indeed he had such a face that innocence would have been a positive fraud upon nature—but, ha, ha, ha! I got him off—I got him off!—a weeping jury declared that he was not guilty.

AGATHA. Capital!

THWAITES. Which it is capital!—just like you, sir.

WHITE. (*draws AGATHA aside*) I say—this person—rather familiar.

AGATHA. Yes, I know—I'm quite annoyed. He's our greengrocer. 'Pa jokes with him in the morning when he buys the vegetables, and now he's come to wait in the evening, he don't understand his position at all.

WHITE. I think I'll take the liberty of dropping a hint. I say, Mr.——

THWAITES. Thwaites, at your service, sir. Cards ain't common in our business; but my address is——

WHITE. Of your address, Mr. Thwaites, I have not the slightest doubt. But I would speak a word with you.

THWAITES. And I'll listen if you talk for an hour. If I take up the newspaper, is it to read about politics? No! About plays?—No, I should rather think not! About pictures? bother, no! I look to see if Mr. Whitewash has been saying something for some poor devil in the Central Criminal Court. That's my intellectual treat!

WHITE. (*flattered*) Indeed! ha! ha! Really, my dear Miss de Windsor we should do wrong to check this diffusion of intelligence among the masses.

*Enter DE WINDSOR, C. from L. C.*

DE W. He is here—is he—the dear boy. I must shake him by the hand. (*rushes forward, R. C. and grasps THWAITES by the hand*) Eh! ha! ha! You're not Whitewash! Ridiculous! I'm always making myself ridiculous; I've too



much heart. You feel what I mean, Whitewash. (*shakes his hand violently*)  
You feel what I mean.

WHITE. (L. C.) Most acutely! (*wringing his hand*)

DE W. I'm so glad you are here before the others. Leave the room, Thwaites. (THWAITES *lingers, moving at back to C.*) I can now disburden my heart. As I said, I'm all heart. (THWAITES *advances, C.*) Leave the room, Thwaites! (THWAITES *goes up, and moves chair from R. to C.*) This moment is the most important—Zounds! Thwaites, will you leave the room?

THWAITES. (*aside, going up, C.*) That's the man of money. Give me the man of mind!

*Exit, C., off, L.*

DE W. (*coming to C.*) Now look, I hesitate no longer; I shilly-shally no longer; I follow the dictates of my heart, and my heart tells me to—Come here, Whitewash—come here, Aggy. (*joins their hands*) Whitewash, consider yourself as my son-in-law.

AGATHA. Really, this is very sudden, 'pa.

DE W. Of course it is; I'm always sudden, I'm a creature of impulse. But do you dislike the arrangement?

AGATHA. I did not say that, 'pa.

DE W. Didn't say that, 'pa! Then why don't you speak out? Wear your mind in your face, as I do, or as my young friend here, with whom I want to speak a few words in private. So, go and see how they are getting on with the coffee.

WHITE. (R.) And don't forget, that you are engaged to me for the first set, and the Polka, and the Lancers.

DE W. Of course, she won't forget. Run along child.

*Exit, AGATHA, C., off, L.*

Now, I can give vent to my feelings; Whitewash, you've done it. I was long making up my mind, but now, you've done it. You are one of the men I like. (*shakes his hand violently—they sit*)

WHITE. My dear sir, I'm most happy. (*wringing his hand*)

DE W. Of course you are. Look you, it's only now that I like you; this very morning I weighed your merits with those of Tom Tango of the Stock Exchange, who you know has a sneaking kindness for my girl, and the balance was considerably in Tom's favour. He's a better looking fellow than you, and his conversation is more agreeable. Then, what's a lawyer? said I, a creature all brains and no heart? no heart, sir! But now, I'm changed, my views are more enlarged—more expansive—I have been——

WHITE. Dining out?

DE W. No, I have been in the Central Criminal Court, during the cause, "The Queen v. Pawkins."

WHITE. Ah, I see! and you heard my speech for the defence. It was not bad, was it?

DE W. It was noble—it was glorious. While I looked upon that poor man in the dock, and I heard you enunciate his virtues and expatiate on the largeness of his small family, he assumed in my eyes the sanctity of a martyr.

WHITE. You don't say so?

DE W. Perhaps you noticed that among the persons in the court one wept aloud—very loud?

WHITE. I did. The policeman turned him out, I believe.

DE W. True—ahem! Some such brutal occurrence did take place; I was the man that wept, sir, you were the man that made me weep; you touched my heart, sir, you touched my heart.

WHITE. (*aside*) Really, a most sensible old gentleman!

DE W. Lingerin at the door, I learned that the prisoner was acquitted. So I walked home, and I said to myself—Whitewash is my destined son-in-

law. I as a manufacturer of fancy soap remove physical impurities from the skin; Whitewash effaces the blots that calumny has cast upon innocence.

WHITE. Innocence!

DE W. Of course; no one knows better than you that that poor persecuted being was innocence itself.

WHITE. (*coolly*) Oh, yes—yes.

DE W. What delight you must have felt in restoring him to his weeping wife, and those five small children!

WHITE. Wife! children! Oh! ah! I believe I did use the expression.

DE W. But there's a further pleasure in store for you. You know I always follow the dictates of my heart. Well—well, my heart told me that society owed that poor persecuted being a reparation, and was bound to declare that he had not forfeited his social position. In a word, sir, I've invited him to my ball this evening.

WHITE. (*rises*) Here? To your house? A fellow with the taint of the dock fresh upon him!

DE W. A taint that he did not merit—a taint that you have so nobly removed. (*rises*)

WHITE. (*aside*) Oh, this is an old fool!

*Enter AGATHA, C., and down, L.*

AGATHA. (L.) Oh, papa, they are nearly all assembled in the other room.

DE W. (C.) Come along then—come along, that I may introduce you as my son-in-law. Come, defender of persecuted innocence!

WHITE. (*to AGATHA*) Mind the first set—the Lancers—the——

DE W. Come along. (*taking his arm*)

*Exeunt DE WINDSOR and WHITEWASH, C. off L.*

AGATHA. (*looking about*) Very foolish of my aunt not to fasten her bracelet better. It can't be here;—I don't believe she has been in this room. Tut, tut! (*goes up, R.*)

*Enter THWAITES, L. D. 2 E.*

THWAITES. (*announcing*) Mr. Pawkins!

*Enter PAWKINS, L. D. 2 E., he bows on all sides as if the room were full of company. Exit THWAITES, L.*

PAWKINS. Why, I'm blessed if there's a soul here!—it's werry inconsistent bowing to two strings of nobody. (*suddenly sees AGATHA, R.*) Oh, I beg pardon, miss;—perhaps you may think it's like my impudence, but is the gov'ner in?

AGATHA. The—the—governor?

PAWKINS. Yes, the gov'ner here; not my gov'ner—no, bless you, he's been under hatches long ago. I want Mr.—I've got his letter somewhere—Mr.—he's something in the fancy soap line.

AGATHA. Oh, my papa—Mr. De Windsor.

PAWKINS. Him's it! So he's your papa, is he? Well then, I say you do him credit: I say it afore your face, and I wouldn't mind saying it behind your back.

AGATHA. (*aside*) A singularly vulgar person! but 'pa does pick up such strange friends in the City.

PAWKINS. Before we go any further I should like to settle one pint: I've picked up this here gimcrack thing on the staircase. (*producing bracelet from his coat pocket*)

AGATHA. (*R., catches it from his hand*) My aunt's bracelet! My dear sir, a thousand—thousand thanks!

*Exit AGATHA, C.*

PAWKINS. A thousand, thousand thanks!—my dear sir, too! Uncommon pretty behaved young person!—a child will take a deal of whipping afore it gets up to that pint of good manners. A shilling slipped in one's hand would have given a finishing touch to the compliment; but one can't have it all one's own way; then her pretty smile were worth more nor a shilling a precious sight. Ah, bless her heart! she'd ha' know'd fast enough that the man who picks up bracelets, and gives them to the right owner, ain't exactly the sort of article as prigs watches.

*Re-enter DE WINDSOR, C., and down, L.*

DE W. (L.) Really a charming scene! most exhilarating! (*sees PAWKINS, R.*) Eh! why, he's here at last! Pawkins, the persecuted! (*shakes his hand violently*) My dear sir, I'm delighted to see you.

PAWKINS. (*wringing his hand*) Thank you; but draw it a little mild.

DE W. (L.) Mr. Pawkins, you are one of the men I like.

PAWKINS. Same to you, sir. You are Mr. De—de—fancy soap line, sir?

DE W. De Windsor.

PAWKINS. Well then, sir, two minutes ago I told the young 'oman she was a credit to you, and now I don't mind telling you you're a credit to the young 'oman.

DE W. (*aside*) Somewhat coarse; but frank and genial.

PAWKINS. You've sent me a sort o' note, sir, as the saying is, asking me to come here; but it strikes me there's some mistake.

DE W. Not in the least, Mr. Pawkins, not in the least. Take a seat.

PAWKINS. (*sits, R. after putting down umbrella, R.*) That's all right then. At all events I've brought the tongs in my pocket.

DE W. The tongs?—rather a singular proceeding!—and the shovel?

PAWKINS. No; get out with you—I mean the curling irons.

DE W. (*coldly*) I—I begin to comprehend; Mr. Pawkins, you are a hair-dresser.

PAWKINS. No; that's where you put your foot in it. I ain't a regular hair-dresser for a nobby concern like this. I cuts a little in the common way, but I am chiefly in the easy shaving line.

DE W. I understand, you keep a hair-cutting saloon frequented by gentlemen only.

PAWKINS. I calls it a shop, sir, but if you calls it a s'loon it's werry kind on you, and I'm much obliged, and if you calls my customers gen'leman, they ought to be werry much obliged to you too.

DE W. (*aside*) Ha! I wish he had been a little higher in the social scale—but no matter. His wrongs have been extraordinary, society owes him an extraordinary reparation. Mr. Pawkins, I trust Mrs. Pawkins and the children are quite well?

PAWKINS. Mrs. Pawkins and the children—ha, ha, ha! Them's as well as can be expected.

DE W. I see—a recent increase to the family.

PAWKINS. Recent gammon! Why there ain't no Mrs. Pawkins—there ain't even a young un.

DE W. Bless me! (*aside*) I'm sure Whitewash talked about small children.

WHITEWASH *runs in C. from L.*

WHITE. Mr. De Windsor, sir—(*aside*) Egad! the rascal's in full confab. Sir—(*pushes himself between PAWKINS and DE WINDSOR, C.*)

PAWKINS. (R.) Why, I'm blest if here ain't my professional gen'leman!

DE W. (L.) Ah, sir, Mr. Whitewash is your true friend.

PAWKINS. No mistake about that! No, Mr. Whitewash, I'm a poor man, but if there's any way of shewing my gratitude——

WHITE. (*whispers*) There's an exceedingly cheap way. Make some excuse and take yourself off as fast as your legs can carry you.

PAWKINS. Ah, he is indeed a friend! (*crosses to C.*) Look here, Mr. De——what's your name? There I stud reading the bill of the Royal Victoria Theatre—something about Will Watch, the Bold Smuggler, when, as if it was done o' purpose, some one smuggles a watch into my umbrella!

WHITE. Yes, yes, we know all about that, the story is exceedingly plausible, and I have told it already, much better than you can, in the presence of this gentleman.

PAWKINS. They lugs me about—they takes me off against my will.

WHITE. Well, then, now indulge in the free exercise of your will, by taking yourself off.

(*some of the COMPANY pass across at back of C. doors, from L. to R.*)

PAWKINS. Stop a bit! though I mostly sticks to the easy shaving line, I've a mind as can soar to the higher branches. That 'ere head of hair is uncommon well got up, the one with the pearls, I mean. Just allow me to have a look, gov'ner, I'll be back in a twinkling.

*Exit, C., and off, R.*

DE W. (L.) Exuberant—unsophisticated creature!

WHITE. Oh, perfectly unsophisticated! I only wish he had not fixed on the only head dress in the room that gives a notion of positive value? No, no, I must not hesitate any longer. Look here, my dear, sir, you are a man of heart—I may say, a noble creature—and it's one of the specific weaknesses of noble creatures, to fancy everybody else as noble as themselves. Now, suppose this favourite of yours, this Pawkins, were really a little light fingered; suppose the dazzling brilliancy of one of your table spoons caused him to forget the distinction between *meum* and *tuum*. Under these painful circumstances, what would you say?

DE W. I should say that you were the most lying humbug I ever clapped eyes on.



WHITE. Heyday! Why?

DE W. Why, didn't you stand up before the judge and jury, and bellow out your belief in that man's immaculate virtue. Did you not clap your hand on your heart, and declare that our country might be proud of such a citizen; and St. Giles's in the Fields proud of such a parishioner? Did not you cause me to blubber aloud, till I was turned ignominiously out of court, as a charity boy is kicked out by a beadle? And am I to understand that all that rhodomontade, followed by that expulsion, was for the sake of a pickpocket? Abominable! Disgusting!

WHITE. But surely, you understand, my dear sir, that when one speaks professionally——

DE W. Sir, no one has business to tell lies, professionally or not; a man should always speak what he thinks. I follow the dictates of my heart, and I always speak what I think; my heart is in my heart, and my heart is in my mouth.

WHITE. What a complicated piece of anatomy you must be.

DE W. I say, my heart is in my mouth.

WHITE. Then I wish you would swallow it, and say no more about it.

DE W. Yes, I dare say you think that a very good joke, but what I am going to tell you is no joke. If Pawkins is a thief, you shan't have my daughter, and Tango shall.

WHITE. Monstrous!

DE W. Not at all, I give you my girl because I regard you as a noble defender of persecuted innocence; but if persecuted innocence turns out to be a low pilfering scoundrel, I naturally retract.

WHITE. But, my dear, sir, the doctrine you so strangely maintain is diametrically opposed to the very principles of British jurisprudence. It is one of the high privileges of our blessed country, and of several others, that even the vilest and meanest criminal is allowed a professional defender in the courts of justice.

DE W. Sir, it is one of the high privileges of our blessed country, and of several others, that a man need not give away his daughter where he don't like.

WHITE. But, sir, by virtue of my profession I am positively bound to——

DE W. Well, I don't say you're not. But an honest man, sir, should have nothing to do with clients that don't come into court with clean hands.

WHITE. My dear Mr. De Windsor, borrow a little wisdom from your own business. If everybody had clean hands, what would become of the soap trade?

DE W. Go, go, and defend every pickpocket, forger, coiner, housebreaker, in London. I don't want to hinder you, I only say that I won't give my daughter to a man who makes respectable people blubber till they are shoved out of court, on purpose to defeat the ends of justice.

WHITE. Then, sir, I suppose, because he furthers the ends of justice, you would give your daughter to the hangman.

DE W. (*puzzled*) Ahem! I shall not condescend to answer an argument so obviously sophistical. I only repeat what I said before. If Pawkins is a thief you sha'n't have my daughter.

WHITE. (*aside*) Reason is wasted on this old blockhead! I must try another tack. (*aloud*) Ah, you have passed nobly through the ordeal. Just to sound you I hinted at the remote possibility of Pawkins' guilt, but he is in point of fact, as we both know, innocent as the babe unborn. Did not the jury say so? However, ta, ta! for the present, sir. (*aside*) I must look out, egad! I was only retained as the rascal's counsel, but I find I am his bail.

*Exit, C., off L.*

DE W. I'm sure he spoke of five small children! No; decidedly this legal morality won't suit me. No, no—no barrister for me—decidedly a stockjobber!

*Enter THWAITES, C., from R.*

THWAITES. Please, sir, the parties which is in t'other room can't get on without you.

DE W. I'm coming! Bull and bears have the day!

*Exit, C., and off, R., followed by THWAITES.*

*Re-enter WHITEWASH, dragging PAWKINS by the collar, from L. C.*

PAWKINS. (L.) Come now, I say, draw it mild! You'll spile my best coat; I only took it out a purpose to come here.

WHITE. (R.) Pawkins, we are alone—Pawkins, as your professional adviser, you are bound to tell me everything. Pawkins, when you came here, what was your intention?

PAWKINS. Why, I com'd here in the hope of doing something in the way of business.

WHITE. Business, indeed! Why, there were all the streets of London open to your ingenuity, and you must pick out the residence of my father-in-law. *(takes stage to R.)*

PAWKINS. *(following him up)* Well, I didn't know it was your father-in-law—and if it is, what's the hodd's? This 'ere Mr.—summat in the fancy soap line, sends me a hinwite, and so I comes with the tongs in my pocket—well, it turns out he don't want the tongs, but he's taken a likin' to me. That arn't no fault o' mine is it? I never tries to be extra agreeable. *(returns to C. of stage)*

WHITE. *(aside)* Perhaps the miserable wretch has commenced already. What have you been doing with yourself?

PAWKINS. Why, I've been a looking at them silver gimcracks on the sideboard, and I says to myself—my eyes! if one of them five thingumbobs as don't seem no use here belonged to me——

WHITE. *(aside)* Unhappy train of thought! Allow me for a moment——  
*(puts his hand in the tail pocket of PAWKINS'S coat)*

PAWKINS. What are you about?

WHITE. Professional! professional!

PAWKINS. Well, I always heerd you lawyers was tidy uns for putting your hands in people's pockets.

WHITE. (*pulls out tongs*) What's this? a spoon!

PAWKINS. You're a spoon yourself! It's the tongs.

WHITE. For a wonder he speaks the truth. Now mark, I'm your professional adviser, and I advise you to be off as soon as you can.

PAWKINS. Well, I don't mind; I've seen all there is to be seen, and it arn't half so good as skittles. Between you and I, the gov'ner here seems to have laid out a precious sight of money for werry little fun.

*Enter DE WINDSOR, R. C., and down, L.*

WHITE. (R.) Go, cut short your moral reflections, and go! (*pushing PAWKINS towards C.*)

DE W. Why, Mr. Pawkins, what's the cause of this singular hurry?

PAWKINS. (*returns to C.*) Well, I don't know; you see, I felt I was somehow in the way like. Nobody says nuffin to me, and I say nuffin to nobody.

WHITE. (R.) Besides, an affair of the most pressing importance.

DE W. Very pressing, indeed! Humbug! You'll stop supper, my dear Mr. Pawkins?

PAWKINS. (C.) Oh, well, if there's anything in the way o' wittles a coming, that alters the view of the case.

DE W. The supper will be served in silver plate,—in silver—in silver.

PAWKINS. What, real silver? like that out there? Don't bother yourself, gov'ner, I'll stop.

DE W. (*aside*) Ha! ha! I've tickled my trout!

WHITE. (*aside, R.*) The old gent is playing against me, that's certain.

*Re-enter THWAITES, C., with a tray of ices.*

DE W. (L.) Thwaites!

THWAITES. (*coming down L. C.*) At your service, sir.

(THWAITES *hands tray to PAWKINS, who first takes an ice, then a spoon, and eats during the following scene*)

DE W. (*drawing THWAITES aside, L.*) You observe that person?

THWAITES. Yes, sir: I don't think him much 'count, sir.

DE W. If that man steals anything, you shall have a couple of sovereigns.

THWAITES. No!

DE W. Spread out the plate as much as you can, give him every opportunity.

WHITE. (R., *beckons THWAITES to him, at back*) Here, waiter!

THWAITES. (*going to WHITEWASH at back, R. C.*) Yes, sir!

WHITE. If that fellow with the ice leaves the house without stealing anything, there's a five pound note for you. (*to THWAITES*)

(DE WINDSOR *walks round and round PAWKINS, with handkerchief dangling from his pocket, during dialogue*)

THWAITES. The deuce!

WHITE. And do your best to keep the plate as much out of his reach as possible.

THWAITES. Can't be done, sir; can't be done. Gov'ner orders the contrary.

PAWKINS. I can't make him out!

WHITE. Here, Pawkins, my good fellow, how do you like your ice?

PAWKINS. First rate! Beats the penny un's all to shivers!

WHITE. Ha! ha! But now you have finished it, you have no occasion for the spoon. (*takes it*)

(*THWAITES on the other side takes empty glass from PAWKINS, and exit C.*)

PAWKINS. I can't make him out!

WHITE. (*aside*) I'll stick to him like a leech!

*Enter AGATHA, C. from L. and down R.*

AGATHA. (R.) Mr. Whitewash, have you forgotten your engagement, the first quadrille? Oh, fie! fie! they are waiting!

WHITE. (R. C.) I'm sure I beg a thousand pardons, but you see just at this moment——(*pockets the spoon*)

PAWKINS. I can't make any on 'em out!

WHITE. (*whispers PAWKINS*) If so much as a salt-spoon is missing you are a dead man!

*Exeunt WHITEWASH and AGATHA, C., off L.*

PAWKINS. (R. C.) I say, gov'ner, about our young friend here; when he's on the spree like, as he is now, don't you think he's a bit cranky? Do you think all's right here? (*touching his head*) If I behaved like that to my young woman, wouldn't there be a row neither.

DE W. (*aside*) Ha! the card table! A trap I didn't think of! I say, Mr. Pawkins, have you any objection to a hand at cards?

PAWKINS. Not a bit on it.

DE W. Of course you play *ecarté*?

PAWKINS. Of course I don't; I never heerd on it.

DE W. Well—cribbage?

PAWKINS. I knows nuffin of cribbage.

DE W. Picquet?

PAWKINS. Eh?

DE W. Picquet?

PAWKINS. Pick hay? I knows nuffin about pick hay; I was werry nigh being sent to pick oakum!

DE W. Well, what shall we play? Suppose we cut for a shilling a game.

PAWKINS. A shilling! Come! I was thinking of a fourpenny bit; but there's nothing like pluck. I say, I hopes you keeps your temper when you loses, for I give you fair warning, I shan't let you go till I've got something out of you.

DE W. Affected candour! but it won't do.

*(they go up to table, L.—DE WINDSOR takes cards out of drawers of table and they sit—DE WINDSOR, L. and PAWKINS, R., and they begin cutting cards—staking money as they play.)*

PAWKINS. Well, you are a going it, you are—*(plays again—aside)* Gov'nor can't be coming the old soldier! Oh, it's a do and no mistake! I must have a eye on this old bird.

*Enter WHITEWASH, C. from L.*

WHITE. Thank heaven I'm free again! What! cards! the devil! *(steals up to table, and whispers to PAWKINS)* Lose!

PAWKINS. Eh?

WHITE. (R.) Lose, I say.

PAWKINS. (C.) Hang it. I have!

DE W. *(sees WHITEWASH—aside)* Oh! I see, the rascal's had his cue.

PAWKINS. There, I shan't play any more; you've got your three bob, and if ever you catch me at it again, it'll do you good. (*rises and goes forward—aside to WHITEWASH*) One good turn deserves another, I'll give you an 'int. Don't let the old gov'ner there get you down to cards, he's a downy 'un, he is!

DE W. Let me see. (*rings money on table*) No! nothing wrong! I have not caught him yet!

*Enter THWAITES, C. from L., announcing.*

THWAITES. (C.) Mr. Ferguson.

*Enter FERGUSON, C. from L., DE WINDSOR goes up to C. door to meet him.*

PAWKINS. It's a gent as knows more about me than I want. (*goes across to R. for umbrella*)

WHITE. (R. C.) Ah! the owner of some stray pocket handkerchief! Make a rush at the door!

PAWKINS. (*crosses to L. D.*) Bolted, by jingo!

WHITE. This last stroke will finish me!

DE W. (*coming down, R. C.*) Allow me, my dear, Mr. Ferguson, to introduce you to my intended son-in-law.

FERGUS. (*down R.*) Sir, allow me to congwatulate you on your vewy interwesting position.

DE W. Mr. Whitewash, sir, is one of the brightest ornaments of the legal profession, and this gentleman is one of his most ornamental clients.

FERGUS. Vewy much delighted. (*bowing to PAWKINS*) Heyday! Here is certainly a party who has taken me by surpwise.

DE W. What do you mean?



FERGUS. I mean that a certain party, a friend of mine, found that party (*pointing to PAWKINS*) in his cupboard, at three o'clock in the morning.

DE W. (R. C.) All right! You are quite sure of your man?

FERGUS. (R.) Oh, perfectly! (*aside*) Seeing that the friend was myself. (*goes up a little*)

DE W. ( *rubs his hands*) Capital! capital! Tango wins the day!

WHITE. (*seated, L. C.*) Father-in-law looks pleased—that's unlucky. (*rises*)

DE W. Come here, my orator! come here, my Cicero! I've a bit of news for you;—Tango will have my daughter—ha, ha, ha! (*pokes WHITEWASH in the ribs*)

WHITE. (L. C.) What, sir! you, a man of heart, who have given your word to me——

DE W. Yes, if Pawkins turned out all right; but he don't—he don't—he don't—ha, ha, ha!

WHITE. Mr. De Windsor, allow me to remark, that an innocent man's character is not to be impugned without sufficient ground. Come here, Pawkins. (*whispers to him, "Brazen it out"*) Pawkins, a malignant slanderer says you are fishy, but you ain't, are you?

PAWKINS. (L.) Not as I am aware on.

DE W. Then, most respectable Mr. Pawkins, what were you doing in a certain cupboard at three o'clock in the morning?

WHITE. Ha! the case is desperate, and a desperate effort must be made.

AGATHA and several GUESTS enter from L. C., and form an AUDIENCE, R.

Listen, all parties present.

DE W. (R. C.) Well, talk away, and make the best of it.

WHITE. Look at the face of this worthy man. Pawkins, get into the dock! (*places him on chair, L., and turns another chair round to lean on, &c.*) Examine every lineament.

PAWKINS. (*on chair, L.*) Come, come, you do make one look such a fool!

WHITE. (L. C.) Believe me, this excellent man is one of those rare natures that are seldom to be found. Ask the independent electors of Marylebone, whom they would place in the van.

PAWKINS. I've been in the wan!

WHITE. Whom they would place in the van as the staunchest champion of their interests. They will answer Pawkins! Ask the poor——(*takes tongs from his own pocket*)

PAWKINS. Them's my tongs!

WHITE. (*throws them on table*) Ask the poor—the suffering poor—whom they regard as their kindest benefactor. They will answer—Pawkins. (*aside to him*) Cry!

PAWKINS. I can't! I say, ain't you pitching it rather too strong!

WHITE. They say we were found in a cupboard at three o'clock in the morning. Well, we admit the trivial fact, we were in the cupboard.

PAWKINS. No, no, no!

WHITE. Though we have every high virtue, we are still but human; we have hearts not altogether unsusceptible to female beauty. (FERGUSON *comes forward, R., in great agitation*) Do you now persist in asking why we were in the cupboard? Well, then, we were there for the sake of one of the fair sex.

FERGUS. But, sir, there is a husband——

PAWKINS. Now he's done it!

WHITE. A husband! Do you call that a husband? As Mr. Justice Blesswell remarked in the great divorce case of *Martyr v. Bangwife*—such a wretch is not worthy the name of a husband. A man who indulges in large potations——

comes home at little hours—and is limited in his notions of crinoline!  
(*bangs chair during speech, then turns it and sits*)

PAWKINS. He'll smash that ere chair!

FERGUS. But, sir, I'm the husband——

WHITE. (*rises and goes to PAWKINS*) That's awkward!

PAWKINS. Yes; it is awkward!

WHITE. But we won't flinch! Mr. De Windsor, I must say your society is not the most select. (*pulls chair from under PAWKINS*)

FERGUS. (*crossing to L., and collaring PAWKINS*) And now, you villain—you destroyer of my domestic peace—what have you to say for yourself?

PAWKINS. Why, I cannot say nuffing, while you goes on choking me like that! (*FERGUSON lets go*) That's better! Well, then, I didn't have no thoughts about Mrs. Ferguson—Mrs. Ferguson don't come up to my hideas of female beauty. (*snaps his fingers*) That for Mrs. Ferguson! If you will tear from me the secrets of my 'art, I com'd arter Jemima, Mrs. Ferguson's young 'oman—there, now, ye knows all about it. I've told the truth, and I can shame—Ferguson!

THWAITES. (*comes forward, L.*) So, Mr. Pawkins, it was Mrs. Ferguson's Jemima, was it? Are you aware, sir, that I pay my attentions in that quarter? Are you aware that I'm Thwaites?

PAWKINS. Are you, indeed?—who says you ain't? There ain't no advantage in being Thwaites, as I sees—I don't want to be Thwaites. You're one of them swells as takes out a young 'oman on a holiday, and grumbles at the expense all the blessed way there, and all the blessed way back;—you prefers the ha'penny boat to the penny, and you prefers walking to heither. Thwaites, you ain't the favored man, so drop Miss Jemima;—I don't say what I'll do if you don't—but just take an 'int, and drop Miss Jemima.

(*AGATHA and DE WINDSOR come forward, R.*)

AGATHA. (R.) Really, papa, this is an extremely vulgar scene, at our party.

DE W. (R. C.) Disgustingly so, my dear—but join the guests, and make the best of it. (AGATHA *retires up*)

WHITE. (*coming forward*, C.) Well, father-in-law, I hope you are satisfied now!

DE W. Mr. Pawkins, I have an apology to make to you—you'll think it very absurd—but I—I—ha, ha!—I scarcely know how to express it—but I actually took you for a thief!

PAWKINS. (L. C.) You ain't the first, else I shouldn't have been tried at the Hold Bailey this morning. Look ye—a fellow chucks a watch into my umbrella——

WHITE. (C.) Yes, yes, we know all about that; besides, you are completely cleared.

DE W. (R.) Perfectly; your character is as cloudless as a fine day in July, and I am about to give you the most convincing proof of my confidence.

PAWKINS. (*aside*) He's going to ask me to shave him!

DE W. (*crossing to C.*) I have long been looking out for a man of indubitable integrity, to act as my cashier; I keep nearly the whole of my fortune locked up in a strong box, so I may as well give you the key now. (*about to give key*, WHITEWASH *hastily comes between them*)

WHITE. (C., *intercepting*) No! no! what are you about? A thief!—a common pickpocket!

DE W. (R.) Ha, ha! victory!—you admit it, do you?

(*retires to GUESTS*, R.)

WHITE. (*aside*) Caught, by all that's unlucky!

PAWKINS. (L.) Come, I say, master, this 'ere won't do: when I looks black, you makes me white; and when I'm whitened, you makes me black: I've a jolly good mind to——

WHITE. Oh, go to the devil!

*Enter THWAITES, C. from L., with a letter.*

THWAITES. (*to WHITEWASH*) Please, sir, a knowin' party, as calls himself your clerk, has brought this. (*gives letter to WHITEWASH; WHITEWASH opens letter at first with indifference, but proceeds to read with eagerness; DE WINDSOR, AGATHA, and FERGUSON come forward, R.*)

DE W. (R. C.) My dear, this matter is settled; you shall be the wife of Mr. Tango.

AGATHA. (R.) La, papa! how shocking!

FERGUS. (*coming down R.*) I beg your pardon; you don't mean Tom Tango, of the Stock Exchange?

DE W. Yes, I do.

AGATHA. Then you haven't heard the news: he was declared a defaulter this vewy afternoon.

DE W. The devil! One swindles—another tells lies: where can I find an honest man?

WHITE. (*rises, having been seated while reading letter*) Here! (*leading PAWKINS forward*) Look at that face—and read that letter? (*gives it*) The sum and substance of it is this: A notorious pickpocket has just been arrested, and retains me for the defence—confessing that he threw the watch into Pawkins' umbrella.

PAWKINS. Does he? Then there's some good in the waggerbone after all.

DE W. Well,—as a barrister who twaddles, is better than a stock jobber who waddles—here's my daughter. (*joins the hands of WHITEWASH and AGATHA*)

PAWKINS. Ah! werry good! Jines hands and gives the paternal blessing! All right and proper! But wot good comes to me on it all? It strikes me you are a rum lot—you are. There's this 'ere wenerable party—(DE WINDSOR) asks me to 'is house—gives me a hice, which doesn't agree with me, and does me out o' three bob at cards! Here's another chap (FERGUSON) as talks

as if he had gooseberries in his mouth, and tries to stop my windpipe. Then here's a sort o' costermonger in disguise (THWAITES) as interferes with my young 'oman.—And here—(WHITEWASH) here's the wust villain on 'em all. Ladies and gents, if I'm in any trouble touching your good-will—him's the party you must pitch into—cos vy? Don't you see? He's retained for the defence.

WHITE. That won't do! I haven't had a refresher.

PAWKINS. Haven't you? Then take your refresher there—(*pointing to AUDIENCE*) that's my refresher. Give me them 'ere parties on my side, and hang me if I'll want any defence at all!

FERGUS. DE W. AGATHA. WHITE. PAWKINS. THWAITES.

R.

L.

***Curtain.***

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In general, this transcription attempts to retain the punctuation and spelling of the source text. A few changes were made for the sake of consistency and to correct minor errors.

The following changes were noted:

- p. 2: Changed the name “Fergusson” in both the character list and the costume notes to “Ferguson” to be consistent with how the name is spelled elsewhere in the text.
- p. 5: WHITE. (L. C.) Most acutely! *wringing his hand*)—Inserted an opening parenthesis before “*wringing*”.
- p. 11: (*some of the COMPANY pass across at back of C. doors, from, L. to R.*)—Deleted the comma after “*from*”.
- p. 14: DE W. (*aside*) Why, Mr. Pawkins, what’s the cause of this singular hurry?—Pawkins’ and Whitewash’s subsequent lines indicate that both hear De Windsor. Therefore, the direction indicating that this line is an aside was deleted.
- p. 17: Gov’nor can’t be coming the old soldier!—Changed “Gov’nor” to “Gov’ner” for consistency.
- p. 18: Tango will have my daughter. ha, ha, ha!—Changed the period after “daughter” to an em dash.
- p. 18: Mr. De Winter, allow me to remark—Changed “De Winter” to “De Windsor” for consistency.
- p. 19: They say we were found in a cupboard at three o’ clock in the morning.—Deleted the space before “clock” for consistency.

Note that Thwaites re-enters on p. 21 when he delivers a letter to Whitewash, but there is no stage direction for Thwaites to exit after Pawkins tells him to “drop Miss Jemima” on p. 20. He could exit either at the end of Pawkins’ speech or when De Windsor apologizes to Pawkins.

\*\*\* END OF THE PROJECT GUTENBERG EBOOK RETAINED FOR  
THE DEFENCE: A FARCE, IN ONE ACT \*\*\*

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